

A motion to consolidate must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated and must have a proof of service filed as part of the motion. (California Rules of Court, rule 3.350(a)(2)(B)-(C).) A notice of continuance was properly served on all attorneys of record in all of the cases sought to be consolidated. (See ROA 68.)

The motion is **unopposed**.

Defendants' motion to consolidate complies with the procedural requirements set forth in California Rules of Court, rule 3.350.

Code of Civil Procedure § 1048(a) provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions, it may order all the actions consolidated, and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." "Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only. [Citation.]" (*Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147-1149.)

The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-79.)

Here, it appears that Defendants seek a complete consolidation of two related cases: *Jovan Derrick Giles v. Peter Sandoval Cervantes and Aliso Viejo Towing Recovery*, case no. 30-2025-01458151-CU-PA-CJC and *Carolle Gonzales v. Aliso Viejo Towing and Peter Sandoval Cervantes; Sieglings Hite*, case no. 30-2025-014899339-CU-PA-NJC.

Defendants' counsel provides that these two related cases both arise out of the same October 27, 2023, incident in which Plaintiffs claim to have sustained injuries after a rear end accident on the I-5 Northbound near Alicia Parkway, such that there are common issues of law and fact. (Declaration of Nicholas Maranesi, ¶¶ 3, 7.)

This being said, the Court notes that the Complaint alleges that the subject accident occurred on or about August 16, 2023, not October 27, 2023 as asserted in the motion. (See Complaint, ¶¶ 1, 7, 17.) Thus, there is some discrepancy as to the date of the incident/accident.

Nevertheless, the motion is unopposed and Defendants' provide evidence that both cases arise out of the same incident and involve common questions of law and fact as to the liability of Defendants to each plaintiff such that a complete consolidation of the cases would enhance judicial efficiency and avoid the danger of inconsistent adjudications. Defendants' motion to consolidate is **GRANTED**.

Giles v. Cervantes, case no. 30-2025-01458151-CU-PA-CJC is the lead case. (California Rules of Court, rule 3.350(b).)

Moving Defendants to give notice.